

Nadella Bhargavi Rachapudi Bhargavi., vs Rachapudi Arun Babu, on 24 February, 2021

Author: M.Venkata Ramana

Bench: M.Venkata Ramana

THE HON'BLE SRI JUSTICE M.VENKATA RAMANA

TRANSFER CIVIL MISCELLANEOUS PETITION No.98 of 2020

ORDER:

This petition is filed under Section 24 C.P.C for transfer of HMOP No.46 of 2020 from the file of the Court of learned Senior Civil Judge, Mangalagiri, to the Family Court, Nellore, for disposal in accordance with law.

2. The petitioner is the wife of the respondent. Their marriage was celebrated on 24.05.2019 at Kotthuru, within Nellore Municipal Corporation limits. For certain reasons, which are not relevant for the present purpose, they have been living separately. The petitioner is a resident of Nellore. The respondent is working as an Assistant Engineer in Public Health Department at Tadepalli, Guntur District.

3. The petitioner is requesting for transfer of HMOP No.46 of 2020 instituted by the respondent against her for divorce, on the grounds that she is living at Nellore, which is far away from Tadepalli and being a woman, it would be difficult for her to attend the Court at Mangalagiri, travelling all the way of 270 kms. She further stated that she has given a complaint to the police in Chinna Bazaar Police Station, Nellore, against the respondent and others, where Crime No.325 of 2019 under Sections 498-A, 323 r/w 34 I.P.C. and under Sections 3 and 4 of the Dowry Prohibition Act is registered. She further stated that she has filed a domestic violence case against the respondent and others in one of the Criminal Courts at Nellore and that she filed another application under Section 9 of the Hindu Marriage Act for restitution of conjugal rights in Family Court at Nellore. Therefore, according to the petitioner, the respondent would not find it hard to attend the Court at Nellore, once the above divorce petition is transferred as requested by her.

4. Sri Akula Venkateswarlu, learned counsel for the petitioner, referring to these facts and circumstances, requests an order in favour of the petitioner.

5. Sri Y.Nagi Reddy, learned counsel for the respondent, strenuously contended opposing this petition that the respondent is an employee in Public Health Department at Tadepalli, where he is living with his parents.

6. Learned counsel for the respondent further contended that the petitioner as well as the respondent lived at Tadepalli for considerable time and therefore, there is justification in institution of divorce petition at Mangalagiri in the jurisdictional Court, disputing the reasons assigned by the petitioner. It is contended by the learned counsel for the respondent that in the event of accepting her request, he would suffer immensely and also hardship.

7. There is no denial of the fact as to filing criminal case and DVC case by the petitioner against the respondent. The petition filed under Section 9 of the Hindu Marriage Act, appears to be at numbering stage and probably, the respondent is not served with a notice therein, which is instituted by the petitioner in the Family Court at Nellore. Nonetheless, when these circumstances are considered, it is apparent that the respondent shall necessarily appear in one of the Courts at Nellore. Residence of the respondent at Nellore in these circumstances, makes out an advantage for her shifting balance of convenience in her favour than the respondent. In as much as there is possibility of respondent to attend the other cases at Nellore, this factor bears much more significance.

8. Being a Government employee, it would not be difficult for the respondent to attend the Court at Nellore. Once this matter is transferred even in respect of territorial jurisdiction in as much as the marriage of these parties is celebrated at Nellore, the Court at Nellore did have such jurisdiction. Therefore, in the above circumstances, the request of the petitioner has to be accepted and accordingly, this petition has to be allowed.

9. In the result, this Tr.C.M.P is allowed directing withdrawal of HMOP No.46 of 2020 now pending on the file of the Court of learned Senior Civil Judge, Mangalagiri, Guntur District and is transferred on to the file of the Court of learned Family Judge, Nellore, for disposal in accordance with law. No costs.

10. Interim orders granted earlier if any, stand vacated.

11. Miscellaneous applications pending if any, shall stand closed.

_____ M.VENKATA RAMANA, J Date: 24.02.2021 Pab